General Information

New Mexico voters will be asked in 2026 to consider four proposed amendments to the state's constitution. Constitutional Amendment 1 would eliminate the governor's ability to pocket veto bills passed by the legislature, Constitutional Amendment 2 would allow school elections to be held at the same time as partisan elections, Constitutional Amendment 3 would establish nominating committees to provide lists of names to the governor to select members of boards of regents of state educational institutions and Constitutional Amendment 4 would allow salaries for state legislators. All four amendments will appear on the November 3, 2026 General Election ballot.

The Constitution of New Mexico provides that the legislature, by a majority vote of all members elected to each house, may propose amendments revising the constitution and that proposed amendments must then be submitted to the voters of the state for approval. A proposed amendment becomes part of the state's constitution if a majority of the votes cast in an election on the proposition is cast in its favor, unless the proposed amendment affects one of the sections for which a three-fourths' majority is required. (This year's proposed constitutional amendments do not affect one of those sections and, thus, need only a simple majority vote to be approved.) Proposed constitutional amendments become effective upon approval by the voters unless an effective date is provided within the text of the proposed amendment.

Constitutional Amendment 4

PROPOSING TO AMEND ARTICLE 4, SECTION 10 OF THE CONSTITUTION OF NEW MEXICO TO ALLOW LEGISLATIVE COMPENSATION THAT IS LIMITED TO THE MEDIAN HOUSEHOLD INCOME FOR NEW MEXICO, TO REQUIRE LEGISLATIVE COMPENSATION TO BE REDUCED IF THE MEDIAN HOUSEHOLD INCOME FOR NEW MEXICO FALLS, TO ALLOW LEGISLATIVE COMPENSATION TO BE INCREASED ONLY IF THE MEDIAN HOUSEHOLD INCOME FOR NEW MEXICO RISES AND TO PROVIDE FOR DELAYED IMPLEMENTATION.

For: _____ Against: _____

Purpose

Constitutional Amendment 4 proposes to amend Article 4, Section 10 of the Constitution of New Mexico to entitle each member of the legislature to compensation for the member's service in addition to the per diem and mileage reimbursement to which the member is currently entitled. The proposed amendment would go into effect when the members of the Fifty-Ninth Legislature are sworn in and seated in 2029 and would allow the legislature to enact a law that provides compensation for each legislator in an amount equal to the annual median household income for New Mexico, which is approximately $68,000 in 2026. Also, the proposed amendment would remove the prohibition on legislators receiving other perquisites or allowances.

Arguments For

1. **Legislative compensation could result in legislators spending more time on legislative work and less time on outside employment.**

Because legislators currently receive only per diem and mileage for their legislative service, some may have to prioritize outside employment and be less able to take time off for legislative work during the interim. Paying each legislator a salary equal to the median household income in New Mexico would give legislators the financial ability to either take more time off from their outside employment or even forego outside employment altogether. This would allow legislators to devote more time to legislative work and be more accessible to their constituents.

2. **Legislative compensation would diversify the pool of potential legislators.**

Legislators currently serve as volunteers, so many legislators have to balance the demands of outside employment with the responsibilities of elected office. Legislators who have outside employment are required to take off either 30 or 60 days each year, at minimum, to carry out their constitutional duties. Even with the provision of per diem and mileage, not being able to fully engage in outside employment during session is a significant financial burden. In New Mexico, the per capita annual income in 2026 is approximately $36,000, meaning most New Mexicans cannot consider running for the legislature because they do not have the financial ability to take one or two months off from work each year and still make ends meet. Paying legislators a salary could alleviate or eliminate the current financial burden of legislative service and allow for more New Mexicans to run for seats in the legislature.

3. **Legislative compensation could improve the balance in state government.**

Like the government of the United States, New Mexico's government is divided into three separate branches that are supposed to be equal in exercising their constitutional duties: the legislature makes the laws; the executive carries out the laws; and the judiciary interprets the laws. From a practical sense, because New Mexico legislators are subject to financial burdens that officers of the other branches are not, the legislature as a whole and its individual members are unable to dedicate the same amount of time necessary to be truly coequal with the executive and judiciary. Paying each legislator a salary would strengthen the legislature by allowing its members the financial flexibility to be more responsive to the issues of the day. Specifically, financial flexibility could allow legislators to be more proactive in addressing policy issues and overseeing executive agencies in the interim and be better prepared for the subsequent session. The financial flexibility could strike a better balance among the co-equal branches of government by allowing the legislature to be more proactive year-round and not just during session.

4. **Legislative compensation provides a second of three steps in professionalizing the legislature.**

Studies have identified resources, compensation and length of sessions as the necessary elements of a professional legislature. State legislators now have district legislative aides as resources for the legislative business of the respective districts. Legislative compensation could provide legislators with the ability to spend more time as active participants in state government through interim committees and possibly longer sessions. The length of sessions continues to be discussed by the legislature, and legislative compensation could provide the flexibility to allow legislators to participate in longer sessions that may otherwise affect their loss of income.

Arguments Against

1. **Legislative salaries could provide legislators with incumbency advantages not available to other candidates.**

Legislative compensation could create advantages in fundraising and campaigning for legislators who would continue receiving compensation while other candidates in primary or general elections may have to forego income from regular employment to raise funds or campaign. Incumbent legislators could rely on legislative campaign funds to pay for campaign expenses while continuing to receive legislative compensation and per diem and mileage reimbursement. Candidates for those positions would be trying to raise funds to sustain a campaign while possibly having to forego income and other employment opportunities and benefits.

2. **The amendment would provide for a legislative salary that is disproportionate when compared to other states.**

Technically, New Mexico is the only state that does not pay legislators a "salary"; however, legislative salaries in some states amount to much less than what New Mexico legislators receive in per diem and pension benefits. For example, New Hampshire legislators receive an annual salary of $100, are not entitled to per diem and are not eligible for any kind of retirement benefit, so in addition to donating their time for legislative service, New Hampshire legislators also have to donate their money to cover their expenses for traveling, lodging and meals during their legislative service. In Wyoming and Utah, legislators receive a salary of $150 and $301 per legislative day, respectfully, and both states allow legislators to receive per diem. Wyoming does not have a legislative retirement system, but Utah does; however, the Utah legislative retirement system is less generous than New Mexico's and has more restrictions.

According to the National Conference of State Legislatures, the average base salary for a state legislator in 2024 was $44,320. More populated states with higher costs of living tend to pay higher annual salaries. For example: New York legislators are paid $142,000; California legislators are paid $132,000; and Michigan legislators are paid $72,000. The New York legislature is part time, but its members are expected to maintain full-time constituent offices in their districts and, although they are allowed to have outside employment, their earnings cannot exceed $35,000 per year. The California legislature is full time, and its members are essentially prohibited from having outside employment and are subject to strict conditions on their legislative salaries. The Michigan legislature is full time, but its members are allowed to have outside employment. In Arizona, each legislator receives an annual salary of $24,000 as well as per diem. Arizona legislative sessions are scheduled to last 100 days each year, but its constitution permits a session to extend beyond 100 days. Massachusetts and Pennsylvania have full-time legislatures, while Alabama and South Dakota have part-time legislatures, and each of these states pay legislative salaries based on median household income and generally allow their legislators to have outside employment. Constitutional Amendment 4 would provide legislative salaries that may be disproportionate to legislative salaries in most other states. The amendment does not require additional legislative service beyond the current minimum requirement of 30 or 60 days each year for regular sessions. Also, the amendment opens the door for additional employee-type benefits for legislative service and imposes no restrictions on outside employment or outside earnings.

3. <u>Constitutional Amendment 4 does not address a number of issues that may have to be addressed by subsequent legislation or constitutional amendment.</u>

It may be necessary for the legislature to address issues such as the following, which is not an exhaustive list:

(1) a definition of "legislative service"; e.g., attendance at meetings of interim committees to which members have been appointed;
(2) whether the median household income is determined by the commonly accepted Current Population Survey Annual Social and Economic Supplement conducted by the United States Census Bureau or some other source;
(3) employee benefits or other perquisites or allowances that may be allowed for legislators;
(4) whether the state and legislator contributions to the retirement fund will remain as they are now or whether they will mirror the state employer and state employee contribution levels, including any other changes to existing law that may conflict with the proposed constitutional amendment; and
(5) whether legislators may receive per diem for interim committee meetings held in the same city or town where they reside.

Full Text of Legislation

Note:
Underscored Material = new language proposed for insertion
[~~Bracketed material~~] = existing language proposed for deletion

HOUSE JOINT RESOLUTION 5 - Proposed Constitutional Amendment 4

PROPOSING TO AMEND ARTICLE 4, SECTION 10 OF THE CONSTITUTION OF NEW MEXICO TO ALLOW LEGISLATIVE COMPENSATION THAT IS LIMITED TO THE MEDIAN HOUSEHOLD INCOME FOR NEW MEXICO, TO REQUIRE LEGISLATIVE COMPENSATION TO BE REDUCED IF THE MEDIAN HOUSEHOLD INCOME FOR NEW MEXICO FALLS, TO ALLOW LEGISLATIVE